

Risk neutral

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liable-D excess burden	Gross outcome error	Total expenditures
American	0.3618	0.1775	0.0045	0.2592	0.4153
Trial Fee-Shifting	0.3595	0.1745	0.0047	0.2586	0.4072

Risk averse

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liable-D excess burden	Gross outcome error	Total expenditures
American	0.3645	0.1259	0.0007	0.2583	0.3195
Trial Fee-Shifting	0.3707	0.1277	0.0003	0.2595	0.3339